

Ranvir Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 May 2022 · Writ-C No. 14657 of 2022 · WRIT - C No. - 14657 of 2022 · **Writ disposed of; petitioner relegated to a Para 6.8 objection, with stay of coercive action.**

HEADNOTE

A writ seeking certiorari against a provisional assessment was disposed of without any opinion on merits. The consumer was given liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if filed, it is to be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing, and coercive recovery is stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Ranvir Singh, a consumer, filed a writ petition seeking certiorari to quash a provisional assessment order dated 10 June 2021 passed by the Executive Engineer, Vidyut Vitran Khand IInd, Etah. The distribution licensee's counsel stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period. The Division Bench heard counsel for the petitioner, the State, and the corporation, and disposed of the petition without examining the assessment on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

provisional-assessment-objection

HOLDING

Without expressing any opinion on merits, a consumer challenging a provisional assessment may be relegated to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, to be decided in accordance with law after a reasonable opportunity of hearing, with a time-bound stay of coercive recovery. ¶ 4-5

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The petitioner was directed to file a Para 6.8 objection within four weeks; if filed, respondent no. 3 is to decide it in accordance with law within the next four weeks after hearing; coercive action is stayed for eight weeks or until disposal, whichever is earlier. ¶ 4-5

assessment-6.8-alternate-remedy Certiorari against the provisional assessment dated 10.06.2021 was not granted on the merits; the writ was disposed of by relegating the consumer to the Para 6.8 objection. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PROVISIONAL ASSESSMENT ORDER DATED 10.06.2021

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 4